

COURT OF APPEALS, STATE OF COLORADO 2 East 14 th Avenue Denver, Colorado 80203	DATE FILED July 2, 2026 3:51 PM FILING ID: A99829B77462C CASE NUMBER: 2026CA391 ▲ COURT USE ONLY ▲
Appeal from: DISTRICT COURT, SAN MIGUEL COUNTY Hon. Laura Harvell Case No. 2024CV000008; Div. 5	
Plaintiff-Appellant: EMILY MASSON v. Defendants-Appellees: THE SAN MIGUEL AUTHORITY FOR REGIONAL TRANSPORTATION, THE TOWN OF MOUNTAIN VILLAGE, and THE TOWN OF TELLURIDE	
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TOWN OF MOUNTAIN VILLAGE’S AND TOWN OF TELLURIDE’S JOINT ANSWER BRIEF	

CERTIFICATE OF COMPLIANCE

I hereby certify that this appellate brief complies with all requirements of C.A.R. 28 and C.A.R. 32, including all formatting requirements set forth therein.

Specifically, I certify that:

1. The brief complies with the applicable word limits set forth in C.A.R. 28(g) because it contains 3,758 words; and
2. The brief complies with the requirements set forth in C.A.R. 28(a)(7)(A) because, for each issue raised by Plaintiff-Appellant, there is under separate heading indication whether Defendants-Appellees agree with the statements concerning the standard of review and preservation for appeal and, if not, why not.

This appellate brief also complies with the Court of Appeals Policy on Citation to the Record Adopted Pursuant to C.A.R. 28(e) dated August 4, 2017.

I acknowledge that my brief may be stricken if it fails to comply with any of the requirements of C.A.R. 28 and C.A.R. 32.

/s/ Christine L. Gazda

Christine L. Gazda, A.R. # 56462

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STATEMENT OF ISSUES PRESENTED FOR REVIEW

The issue presented in this appeal is as follows:

1. Did the District Court abuse its discretion in awarding the Towns their attorney's fees and costs under C.R.S. § 13-17-103?

STATEMENT OF THE CASE

On December 3, 2024, Plaintiff-Appellant Emily Masson (“Ms. Masson”) filed a written statement in San Miguel County District Court, seeking to challenge a result of the 2024 general election in San Miguel County. CF, pp.3-11. Specifically, Ms. Masson sought to overturn approval of Ballot Measure 3A, which authorized certain funding sources for gondola service between Defendant-Appellee Town of Telluride (“Telluride”) and Defendant-Appellee Town of Mountain Village (“Mountain Village”) (referred to collectively as “the Towns”). CF, p.3. The only relief sought by Ms. Masson in her written statement was “nullification of the result of Ballot issue 3A...” CF, p.11. Ms. Masson’s sole legal claim arose under C.R.S. §§ 1-11-201, *et seq.*, which provides a cause of action to contest the result of an election on a ballot issue or ballot question. CF, p.3.

Ballot Measure 3A was referred to the electorate by Defendant-Appellee the San Miguel Authority for Regional Transportation (“SMART”). CF, p.334, ¶ 6.

Neither Telluride nor Mountain Village referred Ballot Measure 3A to the electorate. CF, p.474, ¶¶ 3-4.

In her written statement, Ms. Masson alleged that Telluride had engaged in violations of Colorado’s Fair Campaign Practices Act (“FCPA”). CF, pp.6-7. Specifically, she alleged that a billboard advertisement in favor of the ballot measure was partially on public property and a sign in support of the ballot measure was found on an affordable housing unit operated by Telluride. CF, pp.6-7. Ms. Masson also alleged a related violation of Telluride’s sign code. CF, pp.6-7. respect to Mountain Village, Ms. Masson similarly alleged that a billboard supporting the ballot measure was placed in the town right-of-way. CF, pp.6-7.

On December 18, 2024, Ms. Masson retained counsel. CF, p.104. Shortly thereafter, on January 9, 2025, the Towns informed Ms. Masson that she lacked any viable claims against the Towns. CF, p.513. While the Towns disputed the FCPA and sign code violations, even if proven true, such violations would not be grounds to overturn the results of a ballot measure under C.R.S. §§ 1-11-201, *et seq.*—especially since SMART, not the Towns, submitted the ballot issue to the electorate. CF, p.513. Ms. Masson never responded to this email.

On April 4, 2025, the District Court set a one-day trial on April 18, 2025. CF, p.426. The District Court also ordered the parties to prepare and exchange witness and exhibit lists by April 11, 2025. CF, p.426.

On April 16, 2025—two days prior to trial and 97 days after the Towns told her she had no basis to sue them under C.R.S. §§ 1-11-201, *et seq.*—Ms. Masson moved to dismiss the Towns. CF, pp.451-52. The District Court granted Ms. Masson’s motion, dismissing the Towns with prejudice. CF, p.478.

Thereafter, both Towns moved for attorney’s fees under C.R.S. §§ 1-11-217 and 13-17-102, asserting that Ms. Masson’s litigation conduct was frivolous. CF, pp.504-11; 529-37. Specifically, the Towns asserted that, under C.R.S. § 1-11-201, there are only three grounds that permit a district court to overturn an election regarding a ballot measure. *See* C.R.S. § 1-11-201(3)(a-c); CF, pp.508-09; 531-32. Neither an FCPA violation nor a sign code violation fall within one of the three grounds set forth in C.R.S. § 1-11-201(3). CF, pp.508-09; 531-32. Even if they did, SMART, not either Town, submitted Ballot Measure 3A to the electorate. CF, pp.508-09; 531-32.

The Town further asserted that Ms. Masson’s litigation conduct lacked substantial justification and was frivolous because she was expressly informed in January 2025 that she could not sustain a claim against the Towns *even if* she could

prove her FCPA and sign code violations. CF, pp.509, 532. Yet, she waited over three months to dismiss the Towns. CF, pp.509, 532. But by mid-April, the Towns had been forced to respond to the lawsuit and prepare for the April 18, 2025, trial. CF, pp.509, 533.

In response to the Towns' motions for attorney's fees, Ms. Masson offered little in defense of her delay, pointing only to a settlement offer that she sent to the Towns in February 2025. CF, p. 561. Yet, under the terms of her settlement offer, dismissal of the Towns was conditioned upon them agreeing to issue public statements clarifying the scope and purpose of Ballot Measure 3A. CF, pp.267-68. Neither Town felt such a public statement was needed, in part because neither Town submitted Ballot Measure 3A to the electorate. CF, p. 646, n.1.

The District Court awarded the Towns their reasonable attorney's fees, finding that Ms. Masson's litigation conduct lacked substantial justification because "Plaintiff failed to dismiss the Town within a reasonable time once it was clear that there were no viable claims against the Town." CF, pp.780, 789 (collectively, the "Orders"). Ms. Masson then filed the ensuing appeal.¹ CF, pp.810-16.

¹ The Towns offer a more truncated Statement of the Case because SMART is also submitting an answer brief that will include a greater recitation of the facts. Also, only a limited portion of the record is relevant the District Court's award of attorney's fees to the Towns.

SUMMARY OF THE ARGUMENT

The Towns' entitlement to attorney's fees can be assessed by resolving one question: Can FCPA or sign code violations overturn an election under C.R.S. § 1-11-201(3)? The answer to that question is no, and the Towns informed Ms. Masson of that fact early in this litigation. She waited until two days before trial to take any action towards dismissal. The District Court correctly held that her conduct lacked substantial justification and was frivolous under C.R.S. § 13-17-102.

The Towns disagree with Ms. Masson that the District Court's findings under C.R.S. § 13-17-102 were inadequate. The District Court properly fulfilled its role in assessing attorney's fees and applied the relevant factor from C.R.S. § 13-17-103, finding that Ms. Masson's delay in dismissing frivolous claims warranted an award of attorney's fees.

With respect to Ms. Masson's argument that she was seeking a good-faith extension of the law under C.R.S. § 13-17-102(7), she failed to present that argument to the District Court and thus should be barred from presenting it to this Court. Finally, Ms. Masson is wrong to insist that a "judgment" against the Towns was necessary to sustain an award of attorney's fees under C.R.S. § 1-11-217. Instead, all that was required was a finding by the District Court that her litigation conduct was frivolous. Even if a judgment was required, dismissal under C.R.C.P. 41

qualifies as a judgment for purposes of both C.R.S. §§ 1-11-217 and 13-17-102. Thus, the District Court's award of attorney's fees to the Towns should be upheld on appeal. The Towns should be further granted their attorney's fees on appeal.

ARGUMENT

I. THE DISTRICT COURT'S AWARD OF FEES UNDER C.R.S. § 13-12-102 WAS PROPER.

A. Standard of Review.

Awards of attorney's fees are reviewed for an abuse of discretion. *In re Estate of Shimizu*, 2016 COA 163, ¶ 15. An abuse of discretion occurs only if the district court's decision "rests on a misunderstanding or misapplication of the law or is manifestly arbitrary, unreasonable, or unfair." *Id.* (internal citations omitted).

B. Preservation for Appeal.

The Towns agree that Ms. Masson preserved for review the issue of whether her claims against the municipalities were frivolous.

The Towns do not agree, however, that Ms. Masson preserved for review the specific argument she makes under C.R.S. § 13-17-102(7). Because she never argued for any good faith extension of the law in the District Court, this Court should not consider it on appeal. *See Roberts v. Am. Family Mut. Ins. Co.*, 144 P.3d 546, 549 (Colo. 2006) (noting unpreserved issues will not be considered on appeal).

C. Discussion.

1. There Are Ample Grounds in the Record to Support the District Court's Award of Fees.

The Towns sought attorney's fees under C.R.S. § 13-17-102(2), which permits the assessment of reasonable attorney's fees "against any attorney or party who has brought...a civil action...that the court determines lacks substantial justification." A claim "lack[s] substantial justification" when it is "substantially frivolous, substantially groundless, or substantially vexatious." C.R.S. § 13-17-101.5(1). A claim is frivolous where a "proponent can present no rational argument based on the evidence or law in support of that claim or defense. This standard of frivolousness is not intended to apply to unsuccessful but legitimate efforts to establish a new theory of law or good faith efforts to extend, modify, or reverse existing law." *Bd. of Cnty. Comm'rs of Jefferson Cnty. v. Auslaender*, 745 P.2d 999, 1001 (Colo. App. 1987) (internal citations omitted).

Analysis of the Towns' entitlement to attorney's fees turns exclusively on two points: (1) the claim actually pled in Ms. Masson's written statement; and (2) the Towns' January 9, 2025, email informing Ms. Masson's counsel that her claims against the Towns were frivolous. While Ms. Masson offers a much more complex narrative of why she had valid claims against the Towns, her argument falls apart upon return to her written statement and the January 9, 2025, email.

Beginning with the written statement, it is undisputed that Ms. Masson brought *one* claim for relief. Invoking C.R.S. § 1-11-213, Ms. Masson sought review of the Ballot Measure 3A. CF, pp.3-11. Her sole requested relief was “nullification of the result of a ballot issue or a ballot question.” CF, p.11. Ms. Masson admitted that SMART was the sole entity that placed the ballot question before voters. CF, p.11. It is similarly undisputed that neither Telluride nor Mountain Village administered or oversaw the November 2024 election.

Because Ms. Masson brought an election challenge, and solely an election challenge, the statutory grounds for overturning Ballot Measure 3A were limited. A ballot question may only be overturned for one of three reasons: (1) the receipt of illegal votes or the rejection of legal votes; (2) an error in counting votes; or (3) misconduct by an election judge or member of a canvas board. C.R.S. § 1-11-201(3)(a-c). There are no other grounds upon which to challenge the results of a ballot question.

But none of those three grounds would provide for a claim against either Town, nor did Ms. Masson plead how either Town’s conduct could have led to a reversal of the election’s outcome. To the contrary, Ms. Masson’s allegations against the Towns were limited to alleged FCPA and sign code violations. CF, pp.3-11. But even if Ms. Masson could prove either an FCPA or a sign code violation, such

violation would not support one of the three statutory grounds to nullify Ballot Measure 3A. C.R.S. § 1-11-201(3)(a-c). Thus, the Towns were not proper parties to the lawsuit because the allegations against them, even if proven, would not afford her relief against the Towns.

The Towns informed Ms. Masson of this fact directly on January 9, 2025, asserting, in part, that “the only allegations in the statement against the Towns are FCPA violations and a sign code violation, neither of which can be grounds to overturn an election under C.R.S. § 1-11-201 (Causes of Action).” CF, p.513. Because she had retained counsel by January 9, 2025, it was incumbent upon Ms. Masson to evaluate whether her claim, as pled in the written statement, was sufficient to keep the Towns in her lawsuit. For reasons that have still not been explained, Ms. Masson waited 97 days from the Towns’ email to move to dismiss the Towns, which occurred only two days before the April 18, 2025, trial. CF, pp.451-52. Because dismissal came so late, the Towns had no choice but to prepare for trial, which amounted to a clear waste of taxpayer resources.

The Towns do not think it is necessary to address Ms. Masson’s more detailed factual allegations in her Opening Brief to this Court, where she implores the Court to take a close look at her campaign finance allegations and the alleged coordination among the municipal entities. None of the facts pled in the District Court or

identified on appeal, even if proven, would provide grounds to sue Telluride or Mountain Village under C.R.S. § 1-11-201. Again, the frivolous nature of her litigation conduct is revealed upon reflection of what she pled in her written statement, and her failure to take action in dismissing the Towns once it became obvious that she could not assert an election challenge against them.

2. The District Court Did Not Need to Make Further Findings under C.R.S. § 13-17-103.

Ms. Masson also challenges the District Court's award of attorney's fees under C.R.S. § 13-17-103, asserting that the District Court failed to make the necessary findings of fact supporting its award of fees. Opening Br. 13-15. But Ms. Masson's argument is both legally and factually incorrect.

The only explicit finding that a district court must articulate is why a claim lacks substantial justification. *See Anderson v. Pursell*, 244 P.3d 1188, 1197 (Colo. 2010) ("Although the trial court may not make conclusory statements that a claim lacks substantial justification, it is only required to discuss the relevant factors of section 13–17–103.") (citations omitted). While a district court must rely on the factors set forth in section 13-17-103, it "is under no obligation to issue specific findings with regard to those factors." *Id.*

Though its findings were brief, the District Court explicitly found that Ms. Masson's claims against the Towns lacked substantial justification because she

“failed to dismiss the Town within a reasonable time once it was clear that there were no viable claims against the Town.” CF, pp.780, 789. The Orders at issue here are readily distinguishable from those at issue in *Pedlow* and *In re Gomez*. Opening Br. 13-14. In *Pedlow*, the trial court’s order awarding fees did not even contain one factual finding. *Pedlow v. Stamp*, 776 P.2d 382, 385 n.2 (Colo. 1989). Similarly, in *In re Gomez*, the trial court did not explain why the claims were frivolous. *In re Marriage of Gomez*, 728 P.2d 747, 750 (Colo. App. 1986).

Here, however, the District Court did make a factual finding: that Ms. Masson “failed to dismiss the Town within a reasonable time once it was clear that there were no viable claims against the Town.” CF, pp.780, 789. In other words, the District Court found that waiting 97 days to dismiss the Towns, and only two days before trial, was not reasonable. That finding clearly falls within the statutory factor of “[t]he extent of any effort made after the commencement of an action to reduce the number of claims or defenses being asserted or to dismiss claims or defenses found not to be valid within an action.” C.R.S. § 13-17-103(1)(b). This is evidenced by the District Court’s citation to the reasons outlined in the Towns’ fee motions (CF, pp.780, 789)—which contained exactly this argument. CF, pp. 508-09; 531-32. Ms. Masson provides no legal support for her assertion that the District Court was prohibited from citing to the motions for support or needed to provide further

explanation. Opening Br. 14-15. The Colorado Supreme Court has endorsed fee analyses more abbreviated than the District Court's analysis in this case, including upholding an award where the district court stated merely that there was "no merit" to a party's motions. *In re Marriage of Aldrich*, 945 P.2d 1370, 1379 (Colo. 1997).

Beyond the single factor identified by the District Court, Ms. Masson presented no other evidence that would have made additional factors from section 103 relevant. *See Anderson*, 244 P.3d at 1197 (noting trial courts are "under no obligation to issue specific findings with regard" factors that do not apply). In both the District Court and on appeal, she argues that she made efforts to evaluate her claims in advance, that she did not file claims for the purpose of harassing the Towns, and that there is a significant financial disparity between her and the Towns--all alluding to factors under section 103. Opening Br. 15-18. Yet, Ms. Masson did not submit an affidavit with her response briefs in the District Court, nor is there any evidence in the record detailing her efforts to evaluate her claims in advance or her financial condition. Given Ms. Masson's failure to present evidence that any additional factors under section 103 applied, the District Court was not required to include specific findings as to any other factors.

Finally, Ms. Masson refers to a settlement offer in which she offered to dismiss her lawsuit if the Towns agreed to issue public statements clarifying the

purpose and effect of Ballot Measure 3A. Opening Br. 18. But the Towns, having not placed the issue on the November 2024 ballot, had nothing to clarify. Thus, the settlement offer was not commensurate with the Towns' liability (which was none), nor was there a clear connection between the settlement offer and the claim pled in Ms. Masson's lawsuit. Thus, the rejection of any settlement offer was irrelevant to assessing whether Ms. Masson's claims lacked substantial justification. The District Court was right to ignore this factor.

As explained above, Ms. Masson had no valid claim against the Towns because FCPA and sign code violations, even if proven, could not overturn a ballot question. *See supra*, § I(C)(1). Thus, the Towns' inclusion in the lawsuit, and Ms. Masson's concomitant failure to dismiss the Towns sooner, lacked substantial justification under the law.

3. Ms. Masson Did Not Preserve Any Argument under C.R.S. § 13-17-102(7).

Ms. Masson argues that the District Court erred in its fees analysis because it failed to consider C.R.S. § 13-17-102(7), which precludes an award of fees if the district court determines that a party or attorney brought a claim in good faith in an attempt to establish a new theory of law. Opening Br. 19. However, Ms. Masson never made this argument in the District Court, nor did she cite to section 102(7) in any District Court briefing. Ms. Masson's Opening Brief is conspicuously silent as

to the unpreserved nature of this issue. This Court should decline to consider this unpreserved issue. *Roberts*, 144 P.3d at 549.

Even if the Court were to consider this argument, raised for the first time on appeal, Ms. Masson's argument hinges on a good-faith extension of TABOR. Opening Br. 19. She makes no reference to a good-faith extension of the law in the context of FCPA or sign code violations. Thus, her argument is underdeveloped, at least with respect to the Towns' award of attorney's fees. The Court should again refuse to consider it.

4. A Separate "Judgment" under C.R.S. § 1-11-217 Was Not Needed but Nonetheless Was Established.

In her final argument, Ms. Masson asserts that no "judgment" was entered in favor of the Towns under C.R.S. § 1-11-217. Opening Br. 23. Ms. Masson alleges that because she dismissed the Towns, albeit two days before trial, she can avoid the imposition of attorney's fees under C.R.S. § 1-11-217, which states that "the contestor is liable for all fees incurred in the contested election by all contestees, including reasonable costs and attorneys fees, but a judgment for costs and fees shall be awarded in favor of the state or a political subdivision only if the suit is ruled frivolous, as provided in article 17 of title 13, C.R.S." C.R.S. § 1-11-217(2). This argument should be rejected for two reasons.

First, the record does not actually reflect that the District Court awarded fees under C.R.S. § 1-11-217. Rather, the District Court's Orders are based solely on C.R.S. § 13-17-102 and Ms. Masson's frivolous litigation *conduct*, namely her delay in dismissing the Towns until months after she became aware that her claims were frivolous. Because an award under C.R.S. § 13-17-102 is well supported by the record, and provides independent grounds to support the District Court's fee award, a judgment under C.R.S. § 1-11-217 is not necessary.

Second, even if a judgment under C.R.S. § 1-11-217 were necessary for an award of fees to the Towns, the Towns obtained such a judgment when Ms. Masson dismissed them *with prejudice*. As provided in C.R.C.P. 54(a), a "judgment as used in these rules includes a decree and order to or from which an appeal lies." As well-established by the Colorado Supreme Court, if a dismissal "completely resolves the rights of the parties before the court with respect to a claim and no factual or legal issues remain for judicial resolution, the judgment is final as to that claim." *Brody v. Bock*, 897 P.2d 769, 777 (Colo. 1995). In other words, a dismissal with prejudice is a judgment because it definitively ends the controversy between two parties. *Id.*

The District Court's dismissal of the Towns was with prejudice. CF, p.478. It does not matter that dismissal was accomplished pursuant to a motion under C.R.C.P. 41, as opposed to C.R.C.P. 12, as both can have the effect of causing a

dismissal with prejudice. Thus, the Towns obtained a “judgment” as defined under the Colorado Rules of Civil Procedure and C.R.S. § 1-11-217.

Ms. Masson argues otherwise, citing to *Batterman v. Wells Fargo Ag. Credit Corp.*, 802 P.2d 1112, 1118 (Colo. App. 1990). Opening Br. 23. Yet, the court in *Batterman* was considering a judgment for purposes of claim preclusion, which, in part, requires the parties to have adjudicated an issue “on the merits.” *See id.* (“For this doctrine to apply to a judgment of dismissal, there must have been final judgment on the merits”). Ms. Masson provides no legal support for, and does not even argue that, C.R.S. §§ 1-22-217 or 13-17-102 requires an adjudication on the merits to qualify as a “judgment.” Indeed, such a statutory construction would create absurd results, in which frivolous elections contests thrown out prior to trial would escape liability for attorney’s fees, while closer election contests adjudicated on the merits could result in the imposition of attorney’s fees against unsuccessful plaintiffs. Because such a construction is inconsistent with the goal of deterring frivolous litigation, this Court should reject Ms. Masson’s argument.

II. REQUEST FOR APPELLATE ATTORNEY’S FEES

“When a party is awarded attorney fees for a prior stage of the proceedings, it may recover reasonable attorney fees and costs for successfully defending the appeal.” *Kennedy v. King Soopers Inc.*, 148 P.3d 385, 390 (Colo. App. 2006)

(citations omitted). The Towns hereby respectfully request the award of their appellate attorney's fees under C.A.R. 39.1 and C.R.S. § 13-17-201 and C.R.S. § 1-11-217.

III. CONCLUSION

For the reasons outlined herein, the District Court's Orders should be affirmed, and the Towns should be awarded their attorney's fees on appeal.

DATED: July 2, 2026.

Respectfully submitted,
GARFIELD & HECHT, P.C.

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CERTIFICATE OF SERVICE

I, the undersigned, hereby certify that on July 2, 2026, a true and correct copy of the foregoing **TOWN OF MOUNTAIN VILLAGE’S AND TOWN OF TELLURIDE’S JOINT ANSWER BRIEF** was filed and served upon all counsel of record via the Colorado Courts E-Filing System.

/s/ Rachael Pudlo
Rachael Pudlo